

24SMCV05515 24SMCV05515

County: los-angeles

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

1, 2026

CASE NUMBER

24SMCV05515

MOTIONS

(1)

Motion to Compel Further Responses to Inspection

Demand (Set One)

(2)

Motion to Deem Admitted

(3)

Motion to Compel Response to Form Interrogatory 17.1

MOVING PARTY

Defendant

Mi Casa Real Estate, Inc.

OPPOSING PARTY

none

MOTIONS

On November 8, 2024, Plaintiffs Jean De Galzain ("Galzain"), Patricia Tinker ("Tinker") and Jim Wood ("Wood"), each individually and as an officer of New Age Bible and Philosophy Center (together, "Plaintiffs") filed suit against Defendants Pablo Jimenez ("Jimenez"); Mi Casa Real Estate ("Mi Casa"); Claudia Villalobos aka Claudia C. Villalobos ("Villalobos"); and Church of the People ("COTP") (together, "Defendants") alleging six causes of action as follows:

1.

Adverse possession

2.

Trespass

3.

Slander of Title

4.

Interference with Contractual Relations

5.

Ejectment

6.

Declaratory relief

Mi Casa now moves (1) to deem admitted the matters in the Requests for Admission ("RFA"); (2) to compel a response to Form Interrogatory 17.1 ("FROG"); and (3) to compel further responses to Inspection Demands, Set One ("RPD"). Mi Casa also requests monetary

sanctions in connection with the motions which are unopposed.

DISCUSSION

I.

RFA

Pursuant to Code of

Civil Procedure section 2033.280, subdivision (a), “[i]f a party to whom requests or admission are directed fails to serve a timely response . . . [t]he party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product[.]” (Code Civ. Proc., § 2033.280, subd. (a).)

Where

a party fails to respond to requests for admissions, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction.¿ (Code Civ. Proc., § 2033.280, subd. (b).)

The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.

(Code Civ. Proc., § 2033.280, subd. (c).)

Here, Mi Casa served Plaintiff De Galzain with the RFA by mail on March 12, 2026. (Geffen RFA Decl. ¶ 2 and Ex. 1.) Plaintiff requested and was granted an extension of time to respond to the RFA by May 1, 2026. (Geffen RFA Decl. at ¶ 3.)

Yet, as of the date of filing this motion, Plaintiff had not responded to the RFA, despite requests for responses and an informal discovery conference (“IDC”) with the Court on June 23, 2026. (Geffen RFA Decl. ¶ 3.)

Therefore, the Court grants Mi Casa's motion and deems admitted the matters set forth in the RFA.

II.

FROG

Pursuant to Code of Civil Procedure section

2030.290, "[i]f a party to whom interrogatories are directed fails to serve a timely response . . . [t]he party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or the protection for work product under Chapter 4 (commencing with Section 2018.010. . . . [and] The party propounding the interrogatories may move for an order compelling response to the interrogatories." (Code Civ. Proc., § 2030.290, subds. (a)-(b).)

Here, Mi Casa served Plaintiff De

Galzain Form Interrogatory 17.1 on March 12, 2026. (Geffen FROG Decl. ¶ 2 and Ex. 1.) Plaintiff was granted an extension of time to

respond to the FROG by May 1, 2026.

(Geffen FROG Decl. ¶ 3.)

Yet, as of the date of filing this

motion, Plaintiff had not responded to the FROG, despite requests for responses and an IDC with the Court on June 23, 2026.

(Geffen FROG Decl. ¶ 3.)

Therefore, the Court grants Mi

Casa's motion to compel responses to FROG 17.1.

III.

RPD

A notice of motion to compel further

responses must be given within 45 days of the service of the responses, or any supplemental responses, or on or before any specific later date to which the parties have agreed in writing. (Code Civ. Proc., §§ 2030.310, subd. (c).)

Failure to file such a motion within this time period constitutes a waiver of any right to compel further responses to interrogatories or requests for production of documents. (Ibid.)

Here, on June 2, 2025, Mi Casa served Plaintiff by mail an inspection demand (set one) seeking seven categories of documents ("RPD"). (Geffen RPD Decl. ¶ 2.)

Plaintiff purportedly responded to each request with: "Plaintiff will comply with this demand." (Geffen RPD Decl. ¶ 3 and Separate Statement.) However, Mi Casa does not indicate when Plaintiff's responses were served. As such, the Court cannot determine whether the motion to compel further responses is timely.

Mi Casa does indicate, however, that it met and conferred with Plaintiff's then-counsel about the deficient responses on September 5, 2025. As such, the responses must have been received on or before September 5, 2025.

Yet, Mi Casa did not bring the instant motion until July 27, 2026, nearly a year later.

Therefore, the Court denies Mi Casa's motion to compel further responses to the inspection demands as untimely.

IV. Monetary Sanctions

Mi Casa seeks monetary sanctions against Plaintiff Jean De Galzain in the amount of \$2,276.45 in connection with the motion to compel further responses to the Inspection Demand; \$1,676.45 in connection with the Motion to Deem Admitted; and \$1,876.45 in connection with the Motion to Compel responses to FROG 17.1.

Because the Court denies Mi Casa's motion to compel further responses to the Inspection Demand, it similarly denies Mi Casa's request for monetary sanctions in connection with that motion.

With respect to the RFA, monetary sanctions are mandatory against a

party who fails to respond to requests for admission. (Code Civ. Proc., § 2033.280.) However, because no opposition was filed, and

no time was required to draft a reply brief, the Court awards only \$1,076.45, representing two hours of counsel's time to prepare the motion and one half hour to appear at the hearing (one hour is split equally between the RFA and FROG because it will be the same hearing), at an hourly rate of \$400, plus \$76.45 in filing fees.

With respect to the FROG, monetary sanctions are mandatory against a party who fails to respond to an interrogatory, unless that party acted with substantial justification, or other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2030.290, subd. (c).) Here, Plaintiff

did not oppose the motion, so the Court has no basis to conclude Plaintiff acted with substantial justification or imposing sanctions would be unjust.

However, because no opposition was filed and no time was required to draft a reply brief, the Court awards only \$1,276.45, representing two and a half hours of counsel's time to prepare the motion and one half hour to appear at the hearing at an hourly rate of \$400, plus \$76.45 in filing fees.

CONCLUSION AND ORDER

Therefore, the Court grants Mi Casa's unopposed motion to deem admitted the matters in the RFA and grants in part Mi Casa's request for attorneys' fees and costs in the amount of \$1,076.45.

Further, the Court grants Mi Casa's unopposed motion to compel a response to the FROG and grants in part Mi Casa's request for attorneys' fees and costs in the amount of \$1,276.45.

However, finding Mi Casa's motion to compel further responses to the inspection demand untimely, the Court denies Mi Casa's motion to compel further responses in its entirety.

Plaintiff Jean De Galzin shall provide verified responses to the FROG without objections within thirty (30) days of notice of the Court's orders.

Further, Plaintiff Jean De Galzin shall pay monetary sanctions to Mi Casa in the total amount of \$2,352.90, by and through counsel for Mi Casa,

within thirty (30) days of notice of the Court's orders.

Further, Mi Casa shall lodge and serve proposed Orders in conformity with the ruling on or before September 8, 2026.

Mi Casa shall provide notice of the Court's ruling/Orders, and file the notice with a proof of service forthwith.

DATED: September 1, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court